



Bureau of Experts at the Council of Ministers
Official Translation Department

Notarization Law

Royal Decree No. M/164
July 10, 2020

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Notarization Law

Part 1

Chapter 1: Definitions and General Provisions

Article 1

In this Law, the following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

Law: Notarization Law.

Regulations: Implementing Regulations of the Law.

Minister: Minister of Justice.

Ministry: Ministry of Justice.

Competent Department: The department in charge of notarization at the Ministry.

Notarization: A set of procedures that renders a document authentic to establish the rights included therein, in accordance with this Law.

Notary Public: A government employee who specializes in Sharia and is appointed to the position of a notary public or chief notary public and who is assigned to notarize contracts and declarations.

Notary Officer: A person who performs notarization services in accordance with a license issued under this Law.

Marriage Officiant: A person who notarizes marriage contracts pursuant to a license issued in accordance with this Law.

License: A license issued to a notary officer or a marriage officiant.

Licensee: A notary officer or marriage officiant.

Notary Public Office: The workplace of a notary public.

Notarization Office: The workplace of a notary officer.

Notarization Registry: A documentation form or record which carries the signatures of concerned parties.

Record: A record including the list of licensees.

Concerned Parties: The attester or the parties to a contract.

Article 2

The notary public and the licensee shall apply in notarization the provisions of Sharia and the laws.



Chapter 2: Notary Public Offices and Notaries Public

Article 3

The establishment of notary public offices, determination of their subject-matter and territorial jurisdiction, and their formation and cancellation shall be pursuant to a decision issued by the Minister. The head of the notary public office shall supervise the notaries public therein.

Article 4

Any person to be appointed a notary public shall:

1. be a Saudi national by descent;
2. be of good conduct and not convicted of a crime of moral turpitude, nor disciplined by dismissal from a public office, even if his criminal record has been expunged;
3. be medically fit and of sound senses;
4. hold a university degree in Sharia from a college in the Kingdom or an equivalent degree; and
5. pass a written examination prepared by the competent department.

Article 5

A notary public shall, upon his appointment, attend a training program of not less than 3 months. He shall be subject to a two-year probation period commencing from the first day of his employment. If he proves unfit for the job during said period, he shall be relieved of his duties pursuant to a decision by the Minister.

Article 6

Jobs of notaries public shall be classified as follows:

Notary public (D), notary public (C), notary public (B), notary public (A), chief notary public (D), chief notary public (C), chief notary public (B), chief notary public (A).



Article 7

Qualifications required for notary public positions are as follows:

1. Notary public (D): a bachelor degree in Sharia or its equivalent with a grade not less than “Good”.
2. Notary public (C): 3 years of experience in the position of a notary public (D); or a bachelor degree in Sharia or its equivalent with a grade not less than “Good” and at least 3 years of experience; or a master’s degree in Sharia or its equivalent.
3. Notary public (B): 4 years of experience in the position of a notary public (C); or a bachelor degree in Sharia or its equivalent with a grade not less than “Good” and at least 7 years of experience; or a master's degree in Sharia or its equivalent and at least 4 years of experience; or a doctorate degree in Sharia or its equivalent.
4. Notary public (A): 4 years of experience in the position of a notary public (B); or a bachelor degree in Sharia or its equivalent with a grade not less than “Good” and at least 11 years of experience; or a master's degree in Sharia or its equivalent and at least 8 years of experience; or a doctorate degree in Sharia or its equivalent and at least 4 years of experience.

The Regulations shall specify the areas of experience referred to in this Article.

Article 8

1. For the promotion to the position of chief notary public (D), a candidate shall have spent at least 2 years in the position of notary public (A).
2. For the promotion to the positions of chief notary public (A), (B), and (C), a candidate shall have spent at least 2 years in the preceding position.

Article 9

A person appointed to a notary public position for the first time shall be granted a one-time allowance equivalent to a three-month salary.

Article 10

Salaries of notaries public shall be paid according to a special scale issued by a royal order.



Chapter 3: Notaries Public Powers

Article 11

A notary public shall have the power to notarize contracts and declarations, particularly the following:

1. Divorce, khul' (divorce at the insistence of the wife), and revocation of divorce.
2. Reconciliation.
3. Marriage contracts between a Saudi citizen and a non-Saudi citizen.
4. Agreement on child custody, alimony, or visitation.
5. Establishment of an endowment and will.
6. Division of common property, including real estate, if it is not disputed or does not involve a share of an endowment or will, or does not involve a minor or an absent person.
7. Concerned parties' declaration of damaged property for the purpose of compensation, when necessary.
8. A declaration of an illiterate party.
9. A statement concerning a social matter and attestation of testimonies of witnesses thereon.
10. Conveyance of real estate title deeds and title-establishment deeds that have satisfied Sharia and statutory requirements; transfer of use of title-establishment deeds; and merger of title-establishment deeds and real estate title deeds issued by notary public offices.

Article 12

A notary public may not notarize any declaration or contract involving a minor, an absent person, or administrator of an endowment or will, except in the following cases:

1. Acceptance of gifts.
2. Actions carried out by a father on the property of his minor child.
3. A seller's acknowledgment of sale to the testator of a minor and his receipt of the price prior to the testator's death.
4. A real property expropriated for public benefit, unless the owner is compensated with another real property.
5. A lease contract the duration of which does not require permission from the competent court.

Article 13

The Kingdom's consulates abroad or their designees may exercise certain notary public powers in accordance with rules issued pursuant to a decision by the Minister in coordination with the Minister of Foreign Affairs.

Part 2

Chapter 1: Notary Officer and Notarization Office

Article 14

A notary officer shall:

1. be a Saudi national;
2. be of good conduct and not convicted of a crime of moral turpitude, nor disciplined by dismissal from a public office, even if his criminal record has been expunged;
3. be medically fit and of sound senses;
4. hold a bachelor degree in Sharia or law from a college in the Kingdom or an equivalent degree, with a minimum grade of “Good”;
5. pass a written examination prepared by the competent department;
6. pass a training course in notarization in accordance with the conditions set by the Regulations, unless he has served for a period of not less than one year as a judge, notary public, lawyer, Sharia or legal advisor, or has taught jurisprudence, or its principles, or law at a college in the Kingdom;
7. not be an employee in the public or private sector nor practicing any profession other than that of a lawyer.

Article 15

Without prejudice to the provisions of Articles 11 and 12 of this Law, a notary officer shall, in accordance with the provisions of this Law, be entrusted with notarizing the following:

1. Conveyance of real estate title deeds, as specified in the Regulations.
2. Power of attorney and its revocation.
3. Mortgage deeds and the redemption and amendment thereof.
4. Articles of incorporation of companies, amendment annexes, and related decisions of persons in charge thereof.
5. Minutes of general assemblies of companies.
6. Actions and contracts relating to trademarks, patents, and copyrights.
7. Contracts on movable property.
8. Appearance bonds and guarantees.
9. Acknowledgment, receipt, and assignment of sums of money and movables.

The Council of Ministers may, upon a recommendation by the Minister, decide to entrust a notary officer with some of the other powers of the notary public.



Article 16

A notary officer shall commence notarization within a period not exceeding 120 days from the license issuance date. If he does not commence notarization or decides not to practice notarization for more than 60 days, he must notify the relevant department using the designated form; an entry to this effect in the Record shall be made. The notary officer may not resume notarization except after notifying the relevant department and an entry to this effect in the Record is made.

Article 17

A notary officer must have an office to practice notarization, as determined by the Regulations. A notarization firm may be incorporated in accordance with the Professional Companies Law.

Chapter 2: Marriage Officials

Article 18

A marriage officiant shall be entrusted with notarizing marriage contracts if both parties are Saudis or both parties are non-Saudis, as specified by the Regulations.

Article 19

A marriage officiant shall:

1. be a Saudi national;
2. be of good conduct and not convicted of a crime of moral turpitude, unless a period of at least five years has passed after the execution of the sentence;
3. be medically fit and of sound senses;
4. hold a bachelor degree in Sharia-related fields; and
5. pass a written examination prepared by the relevant department.

Chapter 3: License and Announcement

Article 20

The license shall be issued pursuant to a decision by the Minister upon a recommendation by the relevant department.

Article 21

The Minister shall form a committee chaired by a deputy minister to decide on license applications. Membership of said committee shall include a Sharia advisor and a legal advisor from the Ministry. The rank of both advisors shall not be lower than Grade 10. The application shall be decided on within 30 days from the date of submission, and the decision must be reasoned if the application is rejected. The applicant may appeal before the competent court against the rejection decision or the committee's failure to decide on the application within the prescribed period.



Article 22

The license shall be valid for a renewable period of 5 years. The Regulations shall set the procedures and rules for license issuance, renewal, and reissuance.

Article 23

The licenses shall be entered into the Record by the relevant department. The Regulations shall specify the manner of registration and the data to be included therein.

Article 24

The licensee may make an announcement of his services in accordance with rules set by the relevant department. Such rules shall be issued pursuant to a decision by the Minister.

Article 25

The issuance fee for a notary license is 2,000 riyals, and the renewal fee is 1,000 riyals.

Part 3

Chapter 1: Duties and Prohibitions

Article 26

Notarization may not be practiced without obtaining a license in accordance with the provisions of this Law and the Regulations.

Article 27

The notary public and the licensee shall document in writing the declarations of concerned parties after verifying their eligibility, capacity, and identity and the validity of the submitted documents. The Regulations shall specify the necessary procedures and required documents.

Article 28

The notary public and the licensee shall seek the assistance of a certified interpreter for persons who lack fluency in Arabic. Said interpreter shall affix his signature on the translation. An interpreter with interest may not be hired.

Article 29

A notary public or licensee may not notarize any document in which there is a conflict of interest, whether a personal interest, or an interest of his spouse, ascendants, descendants, or any person under his guardianship, even if acting as a representative.



Article 30

A notary public shall process notarization applications in accordance with this Law and its Regulations. If the application is rejected, the applicant may appeal the decision before the relevant department.

Article 31

A notary public may not carry out notarization outside the notary public office except pursuant to rules set by the relevant department. A notary officer, however, may perform notarization at any location at the request of the concerned parties. In other than foregoing cases, the notarization registry or any retained official document shall remain at all times at the notary public office or notarization office.

Article 32

A notary public or a licensee may not disclose any information to which he becomes privy to in the course of performing his duties.

Article 33

A marriage officiant shall, prior to concluding a marriage contract, ensure that the marriage conditions are satisfied and the guardian, as defined by Sharia, is present.

Chapter 2: Notarization Procedures

Article 34

The Regulations shall specify procedures for notarization by the notary public or the licensee.

Article 35

Data notarized electronically shall have the same legal effect as data notarized in writing subject to the provisions of the Electronic Transactions Law.

Article 36

Contracts and declarations shall be notarized in the Arabic language.

Article 37

A notary public or licensee shall accept documents issued outside the Kingdom which are not in conflict with Sharia or law and are authenticated by the Ministry; this shall apply to their original translation into Arabic.

Article 38

A power of attorney shall remain valid for 5 years from the date of issuance, unless it is revoked or any of the parties thereto dies or becomes incapacitated before the lapse of such period, or the principal specifies a shorter period.



Chapter 3: Notarization Registries

Article 39

Notarization registries shall be kept at the notary public office and with the licensee, in accordance with the conditions specified in the Regulations. The Regulations shall also determine the procedures for delivering notarization registries and copies of notarized contracts as well as the departments in charge of their receipt.

Article 40

1. Notarization shall be executed on forms prepared by the Ministry. Each government agency shall prepare its forms in coordination with the Ministry.
2. Contract forms shall take into account the right of the contracting parties to add agreed upon terms and conditions, provided that they are not inconsistent with Sharia or law.

Chapter 4: Authenticity and Protection of Documents

Article 41

Documents issued in accordance with this Law shall be deemed authentic and shall serve as enforcement documents before courts, without the need for further authentication, and they shall not be contested. Said documents may not be revoked except pursuant to a court ruling for forgery or violation of the principles of Sharia or law, after conducting a full hearing in accordance with Sharia and legal procedures.

Article 42

Any natural or legal person, public or private, with actual or potential interest may sue the person holding a document issued in accordance with the provisions of this Law or benefiting therefrom before the competent court, pursuant to the provisions of the Law of Civil Procedure, the Law of Criminal Procedure, or relevant laws.

Article 43

Annotations of suspension or reservation on the notarization registry or their removal shall be made only by an order of the competent court or competent authority pursuant to a legal provision.

Article 44

If a deed record issued by a notary public prior to the issuance of the Law or a notarization registry is lost or damaged beyond retrieval, a re-entry shall be made with the approval of the concerned parties, provided the deed is verified against its original; otherwise, it shall be referred to the competent department for a decision thereon.



Article 45

If a deed registry issued by a notary public prior to the issuance of this Law is lost or damaged beyond retrieval, it shall be reregistered, provided the deed is verified against its original; otherwise, it shall be referred to the competent department for a decision thereon.

Part 4

Chapter 1: Monitoring and Inspection

Article 46

1. The relevant department shall carry out inspection and monitoring of notaries public and conduct inquiries into executed notarizations in accordance with regulatory procedures specified by the Regulations.
2. The relevant department shall be in charge of inspection, monitoring, and investigation of licensees in accordance with regulatory procedures specified by the Regulations.
3. The provisions of paragraphs (1) and (2) of this Article shall not prejudice the powers of the Judicial Inspection Department at the Supreme Judicial Council in cases brought before it to question notaries public and licensees; review executed notarizations in registers and records; review deeds issued according to such notarizations; and to verify their compliance with Sharia and law. In all cases, the findings of such inquiries shall be referred to the relevant department.

Article 47

The Minister shall, upon a recommendation by the relevant department, suspend a licensee for a period not exceeding 90 days during the inquiry process. The suspension decision shall expire upon the lapse of its term or the acquittal of the licensee, whichever is earlier.

Chapter 2: Penalties

Article 48

The Minister shall form a committee, or more, to review the inquiry findings of notarization violations of notaries public and licensees and impose the penalties stipulated in Articles 49 and 50 of this Law. Said committee shall be chaired by a deputy minister of the Ministry of Justice and shall include a Sharia advisor and a legal advisor as members. In the absence of any member, the Minister shall appoint a replacement. Committee membership shall be for a renewable term of 4 years. Committee meetings shall only be valid if attended by all members, and its decisions shall be passed by majority vote after hearing the statements of the notary public or the licensee. Committee decisions shall be reasoned and subject to appeal in accordance with the provisions of the Law of Procedures before the Board of Grievances.



Article 49

The disciplinary penalties that may be imposed on a notary public are:

1. reprimand;
2. deduction from salary, not exceeding the net salary of 3 months;
3. withholding of one annual bonus; and
4. dismissal.

Article 50

Without prejudice to any harsher penalty prescribed in any other law, a licensee shall be subject to one or more of the following penalties:

1. A warning notice.
2. A fine not exceeding 500,000 riyals.
3. Suspension of the license for a period not exceeding 3 years.
4. Revocation of the license.

Article 51

The final penalty decision shall be entered into the record. The person whose license is revoked may, upon the lapse of 5 years from the date of the decision, apply for re-registration in the record to obtain a license. The Regulations shall specify procedures for re-registration.

Article 52

Without prejudice to any harsher penalty stipulated in any other law, any person who impersonates a licensee in name or capacity or practices the profession without a license shall be subject to imprisonment for a term not exceeding one year or a fine not exceeding 100,000 riyals, or both. The penalty decision may include a provision to publish at the expense of the violator a summary of the decision in one local newspaper or more or through any other appropriate medium, depending on the type, gravity, and impact of the offense; such publication shall take effect only after the decision becomes final.



Part 5: Final Provisions

Article 53

The Minister may decide to outsource certain notarization services.

Article 54

1. Fees may be collected for notarization services pursuant to a decision by the Council of Ministers upon the Minister's recommendation. Said decision shall determine the cases where fees may be suspended or waived and the cases where the collection thereof may be deferred.
2. The Regulations shall determine the fees for notarization services rendered by the licensee, provided said fees are not lower than 100 riyals and not higher than 5,000 riyals.
3. The Council of Ministers may amend the maximum fee referred to in paragraph (2) of this Article.

Article 55

Where this Law is silent, the civil service laws and regulations shall apply to notaries public.

Article 56

The Minister shall, in coordination with the Supreme Judicial Council, issue the Regulations within 180 days following the issuance date of this Law.

Article 57

This Law shall enter into force 180 days following the date of its publication in the Official Gazette and shall repeal any provisions conflicting therewith.



Appendix

Amendments

June 18, 2023 (Thul-Qi'dah 29, 1444H)

Royal Decree No. M/191 provides for the following:

The following shall be amended as of the date the Civil Transactions Law enters into force:

- Amending paragraph (8) of Article 15 to read as follows:
"Guarantees".

July 21, 2025 (Muharram 26, 1447H)

Royal Decree No. M/21 provides for the following:

- Amending paragraph (6) of Article 11 to read as follows:
"6. Division of property owned in common, including real estate, if it is not disputed or does not involve a share of an endowment or will, or does not involve a fully or partially incompetent person or an absent person".
- Amending Article 12 to read as follows:
"A notary public may not notarize any declaration or contract involving a fully or partially incompetent person, an absent person, or an administrator of an endowment or will, except in the following cases:
 1. Acceptance of gifts.
 2. Actions carried out by a father on the property of his fully or partially incompetent child.
 3. A seller's acknowledgment of sale to the testator of a fully or partially incompetent person and his receipt of the price prior to the testator's death.
 4. A real property expropriated for public benefit, unless the owner is compensated with another real property.
 5. A lease contract the duration of which does not require permission from the competent court".
- Amending Article 38 to read as follows:
"A power of attorney shall remain valid for 5 years from the date of issuance, unless it is revoked or any of the parties thereto dies or loses his competence before the lapse of such period, or the principal specifies a shorter period".
- Amending paragraph (2) of Article 40 to read as follows:
"When preparing contract forms, the right of the contracting parties to add any terms or conditions shall be taken into account, provided that they are not inconsistent with statutory provisions".